

Court No. - 29

Case :- WRIT - C No. - 28850 of 2019

Petitioner :- Alauddin

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Adeel Ahmad Khan

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Adeel Ahmad Khan, learned counsel for the petitioner and Sri Kapil Dev Singh Rathore, learned Standing Counsel appearing for respondent no. 2.

The petitioner is challenging the recovery citation dated 25.06.2019 for a sum of Rs. 2,75,025/- as electricity dues.

It has been pointed out that previously, the petitioner has filed Writ C No. 31201 of 2018, disputing the correctness of the electricity bill and the same was disposed of vide order dated 14.09.2018 with liberty to the petitioner to take recourse to the remedy under Clause 6.16 of the U.P. Electricity Supply Code, 2002.

This petitioner has not disclosed anything about the filing of the earlier writ petition. The recovery citation is consequential to the electricity bill raised earlier which has remained unpaid.

In view of the aforesaid circumstances, we find that the petitioner has not approached this Court with clean hands. Accordingly, we decline to exercise our discretionary jurisdiction in favour of the petitioner.

In case, the petitioner is ready and willing to pay the aforesaid amount in instalments, he may approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code.

Accordingly this writ petition is **dismissed**.

Order Date :- 17.9.2019

Vikram/-